

STATE OF NEW YORK

8147--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to providing a heart disease presumption for certain New York police department traffic enforcement agents

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 a new section 607-i to read as follows:

3 § 607-i. Disabilities; health presumption. a. Notwithstanding the
4 provisions of any general, special or local law or administrative code
5 to the contrary, but except for the purposes of the workers' compen-
6 sation law and the labor law, any condition of impairment of health
7 caused by diseases of the heart resulting in total or partial disability
8 or death to a member in the employ of the city of New York police
9 department in the titles of traffic enforcement agent I or traffic
10 enforcement agent II, where such member successfully passed a physical
11 examination on entry into the service of such department, which examina-
12 tion failed to reveal any evidence of such condition, shall be presump-
13 tive evidence that it was incurred in the performance and discharge of
14 duty, unless the contrary be proved by competent evidence.

15 b. Notwithstanding the provisions of any general, special, or local
16 law or the administrative code to the contrary, a member employed by the
17 city of New York police department as a traffic enforcement agent I or
18 traffic enforcement agent II who shall be retired pursuant to subdivi-
19 sion a of this section shall receive a pension equal to three-quarters
20 of such member's final average salary.

21 § 2. All past service costs associated with implementing the
22 provisions of this act shall be borne by the city of New York.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 3. Notwithstanding any provision of law to the contrary, none of the
 2 provisions of this act shall be subject to the appropriation requirement
 3 of section twenty-five of this chapter.

4 § 4. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

SUMMARY: This proposed legislation would provide Tier 4 and Tier 6 Traffic Enforcement Agents with a rebuttable statutory presumption that a qualifying disability or death related to heart disease was incurred in the performance of duty and provide a performance of duty disability benefit equal to 75% of Final Average Salary.

ILLUSTRATION - INCREASE (DECREASE) IN EMPLOYER CONTRIBUTIONS
 by Fiscal Year for the first 25 years (\$ in Thousands)

Year	One Incident		One Incident Per Year	
	Disability	Death	Disability	Death
2026	39	26	39	26
2027	39	26	80	53
2028	39	26	122	81
2029	39	26	165	110
2030	39	26	209	140
2031	39	26	255	170
2032	39	26	302	202
2033	39	26	350	234
2034	39	26	400	267
2035	39	26	451	301
2036	39	26	504	337
2037	39	26	559	373
2038	39	26	615	411
2039	39	26	673	449
2040	0	0	693	463
2041	0	0	714	477
2042	0	0	735	491
2043	0	0	757	506
2044	0	0	780	521
2045	0	0	803	537
2046	0	0	827	553
2047	0	0	852	569
2048	0	0	878	586
2049	0	0	904	604
2050	0	0	931	622

Employer contribution impact beyond Fiscal Year 2050 is not shown.

The potential increases in employer contributions will be allocated to New York City.

PRESENT VALUE OF BENEFITS: The Present Value of Benefits is the discounted expected value of benefits paid to current members if all assumptions are met, including future service accrual and pay increases. Future new hires are not included in this present value.

INITIAL INCREASE (DECREASE) IN ACTUARIAL PRESENT VALUES
 as of June 30, 2024 (\$ in Thousands)

Present Value (PV)	Per Disability	Per Death
(1) PV of Employer Contributions:	333	222

(2) PV of Employee Contributions:	<u>(11)</u>	<u>0</u>
Total PV of Benefits (1) + (2):	322	222

UNFUNDED ACCRUED LIABILITY (UAL): Actuarial Accrued Liabilities are the portion of the Present Value of Benefits allocated to past service. Changes in UAL per incident would be recognized as ongoing gain/loss.

AMORTIZATION OF UNFUNDED ACCRUED LIABILITY

Recognized as Ongoing Gain/Loss	Per Disability	Per Death
Increase (Decrease) in UAL:	333 K	222 K
Number of Payments:	14	14
Amortization Payment:	39 K	26 K

CENSUS DATA: The number of members who will benefit in the future from this proposed legislation is unknown. The estimates presented herein are based on preliminary census data collected as of June 30, 2024. The census data for the potentially impacted population used to develop the average costs is summarized below.

	NYCERS
Active Members	
- Number Count:	2,430
- Average Age:	46.3
- Average Service:	9.2
- Average Salary:	55,000

IMPACT ON MEMBER BENEFITS: Currently, active Tier 4 or Tier 6 members who are employed as Traffic Enforcement Agents and become disabled due to heart disease would generally be eligible for an applicable ordinary disability retirement after attaining 10 years of service. The disability benefit is a lifetime payment equal to the greatest of 1/3 of Final Average Salary (FAS), 1/60th of FAS times service, or the service retirement benefit, if eligible.

Under the proposed legislation, the performance of duty disability benefit for Tier 4 or Tier 6 Traffic Enforcement Agent members who are disabled from heart disease would be equal to 75% of FAS without an offset for Workers' Compensation.

The ordinary death benefit for Traffic Enforcement Agents is a lump sum payment generally equal to three times the member's salary, plus a refund of member contributions. The performance of duty death benefit would generally be equal to a lifetime benefit of 50% of a member's wages earned during their last year of service, payable to certain beneficiaries.

ASSUMPTIONS AND METHODS: The estimates presented herein have been calculated based on the Revised 2021 Actuarial Assumptions and Methods of the impacted retirement systems.

The number of members who will benefit from this proposed legislation is unknown. The cost of this proposed legislation could vary greatly depending on the number of future members who benefit and on their length of service, age, and salary history. In particular, the increase would be greater for a member who is not yet eligible for an ordinary disability benefit when disabled.

The estimated financial impact for disabled members has been calculated assuming 50% would have retired under the current ordinary disa-

bility benefit, and 50% would have continued working if the proposed legislation were not passed.

RISK AND UNCERTAINTY: The costs presented in this Fiscal Note depend highly on the actuarial assumptions, methods, and models used, demographics of the impacted population, and other factors such as investment, contribution, and other risks. If actual experience deviates from actuarial assumptions, the actual costs could differ from those presented herein. Quantifying these risks is beyond the scope of this Fiscal Note.

This Fiscal Note is intended to measure pension-related impacts and does not include other potential costs (e.g., administrative and Other Postemployment Benefits). This Fiscal Note does not reflect any chapter laws that may have been enacted during the current legislative session.

STATEMENT OF ACTUARIAL OPINION: Marek Tyszkiewicz and Gregory Zelikovsky are members of the Society of Actuaries and the American Academy of Actuaries. We are members of NYCERS, but do not believe it impairs our objectivity, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. To the best of our knowledge, the results contained herein have been prepared in accordance with generally accepted actuarial principles and procedures and with the Actuarial Standards of Practice issued by the Actuarial Standards Board.

FISCAL NOTE IDENTIFICATION: This Fiscal Note 2025-76 dated June 6, 2025 was prepared by the Chief Actuary for the New York City Retirement Systems and Pension Funds and is intended for use only during the 2025 Legislative Session.